

September 1, 2026

The Oldham County Fiscal Court convened at 2:00pm, with Judge-Executive David Voegelé, County Attorney Berry Baxter, and the following magistrates in attendance: Brent Likins, Wayne Theiss, Kevin Woosley, Kevin Jeffries, Chris Haunz, Stephanie Hawkins, Bob Dye and Michael Logsdon.

APPROVAL OF AGENDA:

Motion made by Magistrate Haunz and seconded by Magistrate Logsdon, as presented with the addition of the state road aid contract under Contracts and Resolutions and to revisit August 24th meeting procedures under Community Business. Motion carried unanimously. **Exhibit #1 9/01/2026**

APPROVAL OF MINUTES:

Motion made by Magistrate Theiss and seconded by Magistrate Jeffries to approve the minutes from August 18, 2026, as presented. Motion carried unanimously.

Judge Voegelé made a statement regarding the GIS boundary dispute and County Attorney Berry Baxter updated the court on the actions being taken to address it to date. Magistrate Haunz also spoke on the issue.

PUBLIC COMMENT:

The following individuals spoke during public comment:

Bob Leslie, 2306 Running Brook Road, Lagrange -

Motion made and seconded to allow 2 additional minutes for Mr. Leslie to speak. Motion carried unanimously.

Magistrates Woosley and Likins responded to the concerns and County Engineer Jim Silliman addressed the right-of-way concerns.

BID OPENING: DRAINAGE IMPROVEMENT PROJECT IVO 4211 HAYFIELD WAY

The following bids were opened and read into the record:

Allterrain Paving & Construction	\$ 107,442.00
APEX Design Group, Inc.	\$ 136,012.50
Hall Contracting	\$ 115,069.00
LIBS Paving Co, Inc.	\$ 123,683.43
SOKY Elite Contractors	\$ 82,250.00
TRC, LLC	\$ 73,666.00

The bids were given to the County Engineer for review and recommendation. **Exhibit #2 9/1/2026**

KIPDA REGIONAL HAZARD MITIGATION PLAN UPDATE

Ryan Lloyd, Regional Planner & GIS Specialist updated the court on the 2026 Regional Hazard Mitigation Plan. **Exhibit #3 9/1/2026**

COUNTY ADMINISTRATION:

Payables

Motion made by Magistrate Haunz and seconded by Magistrate Jeffries to approve the payables as submitted. Motion carried unanimously. **Exhibit #4 9/1/2026**

2nd Reading/Public Hearing KOC-26-220-9 FY27 Budget Amendment

Chief Finance Officer, Stan Clark, presented the Budget Amendment ordinance to the court.

There being no public comment, the public hearing was closed.

Motion made by Magistrate Haunz and seconded by Magistrate Dye to adopt Ordinance KOC-26-220-9 as presented. Motion carried unanimously. **Exhibit #5 9/1/2026**

CONTRACTS & RESOLUTIONS:

Tax Rate Resolution/Public Hearing

Chief Finance Officer, Stan Clark, presented the Tax Rate Resolution and responded to questions from the court.

The being no public comment, the public hearing was closed.

Motion made by Magistrate Haunz and seconded by Magistrate Dye to adopt Resolution 01-09-01-26 as presented. Motion carried 8-1 on a roll call vote. Magistrate Woosley voted no. **Exhibit #6 9/1/2026**

2026-2027 Rural Secondary Program

Tom Hall, P.E. and Tony Harrod from KYTC presented the Rural Secondary Road Program for 2026-2027 and responded to questions from the court.

Discussion followed.

Motion made by Magistrate Woosley and seconded by Magistrate Jeffries to adopt Resolution #02-09-01-26 designating the usage for the 2026-2027 flex funds as submitted. Motion carried unanimously on a roll call vote. **Exhibit #7 9/1/2026**

County Road Aid Cooperative Program Agreement

Motion made by Magistrate Jeffries and seconded by Magistrate Woosley to authorize the Judge Executive to sign the County Road Aid Cooperative Program Agreement as presented. Motion carried unanimously on a roll call vote. **Exhibit #8 9/1/2026**

COMMUNITY BUSINESS:

Judge Executive Voegelé made a statement regarding a special-called meeting attempt on 8/24/2026 and stated due to the lack of proper procedure, the meeting will not be one of record.

Magistrate Woosley made a statement regarding his motion on the data center regulations and the hiring of a consultant.

Motion made by Magistrate Woosley and seconded by Magistrate Logsdon to reconsider the hiring of a consultant for the data center regulations and to send the proposed regulations back to the Planning Commission for recommendation. Motion carried unanimously.

1st Reading – KOC-26-920-38 Related to Zoning Text Amendments of the Comprehensive Zoning Ordinance Creating Data Center Regulations Section 250-340 – Discussion of Possible Amendments

Judge Voegelé presented for a 1st Reading KOC-26-920-38 with the following adjustments to be added:

1. All references in the Ordinance to 'large' and 'hyper scale' data centers will be removed
2. The maximum amount of power for data centers in C-4-, 1-1, 1-2 and IPD is limited to a maximum of 10- Megawatts
3. Building size for a Medium Data Center Building is a maximum of 110,000 square feet
4. All property owners (as listed in current Oldham County PVA records) within 1000 feet of the property lines of the proposed data center must be notified of the neighborhood meeting at least two weeks before the meeting via first class USPS mail.

Motion made by Judge Voegelé and seconded by Magistrate Woosley to include the revisions as recommended. Motion carried unanimously. **Exhibit #9 9/1/2026**

1st Reading – KOC-26-920-33 – Zoning Map Amendment – Paramount Estates/Quarry Rd/Buckeye Lane

Community Planner John Hine presented the zoning map amendment for a 1st reading with the 2nd reading to be 9/15/2026. **Exhibit #10 9/1/2026**

COMMITTEE REPORTS & RECOMMENDATIONS:

Recommendation to Release Brentwood Section 6 Erosion Control Surety

Motion made by Magistrate Jeffries and seconded by Magistrate Woosley to release the \$104,700 erosion control surety for Brentwood Section 6. Motion carried unanimously. **Exhibit #11 9/1/2026**

Magistrate Hawkins left meeting at 3:15pm

Recommendation to Release Brentwood Section 7 Erosion Control Surety

Motion made by Magistrate Dye and seconded by Magistrate Jeffries to release the \$58,900 erosion control surety for Brentwood Section 7. Motion carried unanimously. **Exhibit #12 9/1/2026**

PERSONNEL & BOARD APPOINTMENTS:

Parks & Rec

Motion made by Magistrate Haunz and seconded by Magistrate Woosley to hire Chrissi Thompson as Building Monitor, \$11/hour effective 9/2/2026. Motion carried unanimously. **Exhibit #13 9/1/2026**

Police Merit Board

Motion made by Judge Voegelé and seconded by Magistrate Haunz to reappoint Jim Zimmerman to the Police Merit Board as submitted. Motion carried unanimously. **Exhibit #14 9/1/2026**

PUBLIC COMMENT:

Don Erler, OC resident – concerns regarding timeline of data center regs ordinance

County Attorney Berry Baxter addressed the concern and Ryan Fischer addressed notice requirements for a 2nd reading/public hearing.

ANNOUNCEMENTS/UPDATES:

Magistrate Dye commented on a school bus incident.

Magistrate Haunz cautioned everyone about the hot weather, stated the county-line boundary issue is complex and lots of people are working on it. He also asked Jim Silliman for an update on Meyers Avenue.

Magistrate Jeffries reminded everyone of the upcoming paving activity planned for Highway 146.

Magistrate Woosley announced the 9/12 fish tournament in Westport and mentioned the passing of Wendell Berry.

Magistrate Theiss voiced concerns about the I-71 rest areas.

Magistrate Likins reiterated how important it is to fix the road problems rather than just pave

Judge Voegele asked County Attorney Berry Baxter for an update on the selection of a director for the Regional Drug Taskforce.

MEETING ADJOURNED:

Motion made and seconded to adjourn the meeting at 3:40pm. Motion carried unanimously.

Respectfully submitted,

Tina Schaaf, Fiscal Court Clerk
September 1, 2026